ELECTRONICALLY FILED MAY 04, 2026 CLERK OF SUPREME COURT

IN THE SUPREME COURT
FOR THE STATE OF IOWA
NO. 25-1049

STATE OF IOWA,
Plaintiff-Appellee,

vs.

MALIK JABBAR OBEY MUHAMMAD,
Defendant-Appellant.

APPEAL FROM THE IOWA DISTRICT COURT
FOR BLACK HAWK COUNTY, NO. AGCR260267
HONORABLE BROOK JACOBSEN

DEFENDANT-APPELLANT'S REPLY BRIEF

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INTRODUCTION

Mr. Muhammad has a constitutionally protected right to testify in his own defense. *Rock v. Arkansas*, 483 U.S. 44, 51 (1987). The State mistakenly asserts that Mr. Muhammad forfeited his right to testify in his own defense. The State did not preserve this error at the district court. Thus, the State is not entitled to argue Mr. Muhammad forfeited his right to testify for the first time on appeal. Finally, even if error was preserved, this Court should find Mr. Muhammad did not forfeit is right to testify.

ARGUMENT

Despite the State's argument that Mr. Muhammad forfeited his right to testify, the State failed to preserve error on this issue. *State v. Rethwisch*, 997 N.W.2d 169, No. 22-0530, 2023 WL 5607147 at *5, (Iowa Ct. App. Aug. 30, 2023) ("It is a fundamental part of our error-preservation doctrine that, in order to preserve error on an issue, a party must raise the issue and obtain a ruling on it."); *State v. Ruhs*, 885 N.W.2d 822, 826 (Iowa Ct. App. 2016) (State's failure to assert timeliness issue, on which district court based its ruling, precluded appellate court from affirming on that ground."). The State never requested that the district court find that Mr. forfeited his right to testify.

More specifically, the State requested that the court fix Mr. Muhammad's testimony "or we need a ruling now that the door is now open." (D0080 – Jury Trial

Day 2, p. 33, lines 1-25; p. 34, lines 1-8). The State requested it be permitted to call witnesses to discuss the firearms and their belief as to who possessed them. (*Id*.). The State went on to request:

> I should be free to recall --first, to recall Ms. Owens to say I don't have any guns and potentially for her to say, and if there were any guns in there, they were the defendant's guns, and then subsequently on rebuttal to call law enforcement and say, yeah, we found guns. They weren't in the possession of Ms. Owens. We reasonably believe that they were possessed by the defendant. And so, again, I think now those doors have been opened.
>
> (*Id*. p. 35, lines 11-24).

The State made it clear that Mr. Muhammad opened the door and it wished to call witnesses to rebut his testimony. The State also requested a contempt finding. (*Id*. p. 57, lines 5-16). The State did not know whether ending Mr. Muhammad's testimony was even an appropriate sanction. (*Id*. p. 57, lines 24-25; p. 58, lines 1-2). The State did not request that the district court enter a ruling that Mr. Muhammad forfeited his right to testimony. In fact, the State again requested that the court find Mr. Muhammad opened the door and it be permitted to call witnesses – including FBI agents, to testify about their knowledge of the firearms. (*Id*. p. 58, lines 14-21).

Given the State never requested the district court find that Mr. Muhammad forfeited his right to testify, this Court should hold the State failed to preserve error. The State made clear that it requested the court find Mr. Muhammad opened the door. Thus, this Court should not consider the State's argument that Mr. Muhammad forfeited his right to testify for the first time on appeal.

If this Court finds that the State preserved error, this Court should find that Mr. Muhammad did not forfeit his right to testify and the appropriate remedy was to allow the State to rebut his testimony. The State cites an expansive list of cases to support the proposition that Mr. Muhammad forfeited his right to testify. Each of the cases are distinguishable, however.

Interestingly, the State cites *State v. Cantu*, 547 P.3d 477 (Kan. 2024). The court in *Cantu* found that the district court erred in denying the defendant's constructional right to testify by striking his testimony. *Id*. p. 484. The defendant was uncooperative on cross-examination. *Id*. p. 480. The district court justified striking the defendant's testimony as "Mr. Cantu would not cooperate when I told him to only answer questions on cross-exam. I believe the State's request is valid. His testimony is stricken." *Id*. The *Cantu* court explained further:

> While a finding of forfeiture is the most overt way in which a defendant may be deprived of the right to testify, a court may also infringe on the right to testify by striking the defendant's testimony. Striking the testimony of any witness is a drastic remedy not to be lightly invoked. But when the witness is the defendant, courts must proceed with extra caution when deciding whether to strike testimony due to the constitutional right at stake. This obligation is not lessened when the defendant's behavior causes frustration. Yet striking any witness' testimony is an appropriate remedy when the witness frustrates the fact-finding process, such as by testifying to irrelevant matters or refusing to answer the cross-examiner's questions.
>
> (*Id*. p. 484 (citations omitted)).

As the *Cantu* court noted, striking any witnesses' testimony is a drastic remedy. *Id*. When the defendant's testimony is stricken, the court need use extra

caution. This case does not support the drastic remedy of finding that Mr. Muhammad forfeited his right to testify.

In *Holmes v. South Carolina*, the United States Supreme Court held that the district court arbitrarily excluded evidence the defense wished to present to the jury. 547 U.S. 319, 331 (2006). The case does not involve striking a defendant's testimony and ordering that they forfeited their right to testify. Thus, this case does not support the State's proposition that Mr. Muhammad forfeited his right to testify.

The Iowa Supreme Court in *State v. Hutchinson*, 241 N.W.2d 33, 42 (Iowa 1983) held a court did not abuse its discretion in refusing to appoint substitute counsel. The case does not support the State's contention that Mr. Muhammad forfeited his right to testify. In *Illinois v. Allen*, 397 U.S. 337, 343 (1970), the defendant engaged in conduct that was "so disorderly, disruptive, and disrespectful of the court that [the] trial cannot be carried on with [the defendant] in the courtroom." The defendant engaged in abusive and threatening outbursts. *Id*. The defendant threatened the judge. *Id*. The defendant obstructed the proceedings stating "[t]here's not going to be no proceeding. I'm going to start talking and I'm going to keep on talking all through the trial." *Id*. at 340-41. Mr. Muhammad did not comply with order on the motion in limine, a far cry from the facts in *Allen*.

In *Lopez v. State*, 579 P.3d 206, 213 (Okla. Crim. App. 2025), the court found that the trial court abused its discretion in terminating a defendant's testimony and

finding that the defendant forfeited his right to testify by referencing the victim's criminal history. The court held an evidentiary infraction did not support the finding that the defendant forfeited his right to testify. *Id*. Frankly, the *Lopez* decision supports Mr. Muhammad's argument that he did not forfeit his right to testify.

In *United States v. Nunez*, 877 F.2d 1475, 1478 (10th Cir. 1989), the defendant had repeated outbursts during trial. The defendant interrupted trial with loud talk and gesturing. *Id*. The court gave the defendant opportunities to return to the courtroom but the defendant refused. *Id*. Different than in *Nunez*, Mr. Muhammad did not have random outbursts when sitting at counsel table and while other witnesses were testifying. Mr. Muhammad *wished* to testify, different than in *Nunez*. Thus, *Nunez* is distinguishable.

In *United States v. Evans*, 908 F.3d 346, 355 (8th Cir. 2018), the defendant wished to testify about his feelings regarding his legal team and the criminal justice system generally. Mr. Muhammad attempted to do neither. Rather, he wished to testify Ms. Owens possessed a firearm and was the initial aggressor to support his self-defense claim. (D0080, Jury Trial Day 2, p. 46, lines 4-20).

In *United States v. Ives*, 504 F.2d 935, 941-42 (9th Cir. 1974), the defendant interrupted voir dire. The defendant interrupted defense counsel's opening statement. *Id*. at 943. The defendant refused to be present in the courtroom. *Id*. During a recess, the defendant struck his counsel in the face. *Id*. The defendant

wished to testify to law enforcement violating federal law, the victim's widow receiving insurance money because of her husband's death, and he would not answer defense counsel's questions. *Id*. The defendant demanded he testify from counsel table without taking an oath. *Id*. The judge gave the defendant the opportunity to testify at counsel table and without taking the oath multiple times, and the defendant continued to evade the questions. *Id*. The defendant alleged the government, the judge, and one of his counsel were bribed by an insurance company to bring false charges against him. *Id*. The defendant was placed in a cell beneath the courtroom and demanded he be permitted to return. *Id*. at 944. The court denied the request and the defendant banged and shouted loudly in protest of the court's decision. *Id*. The court permitted the defendant to return at a later time and the defendant chose to charge his attorney and throw a book at him. *Id*. The defendant charged the government's attorneys. *Id*. Mr. Muhammad's actions in violating the motion in limine are much less egregious than the defendant's behavior in *Ives*.

In *Jackson v. State*, --- S.E.2d ---, 2026 WL 739189, at *5-*6 (Ga. Mar. 17, 2026), the defendant took the stand and immediately interrupted his counsel's first question, read a speech about his frustration with counsel, increased his pitch and tensed up, it took several deputies to restrain the defendant, continued to yell in a courtroom holding cell, and was given multiple opportunities to conduct himself properly before the judge ordered he forfeited his right to testify. In *State v. Jones*,

701 S.W.3d 716, 719 (Mo. Ct. App. 2024), the defendant expressed he did not want to participate in the trial during a pretrial hearing. *Id*. at 718. During voir dire, the defendant interrupted the court, interjected during his counsel's jury selection, called the judge "lady" and by her first name, and made "loud, and quite frankly, aggressive sounding outbursts" toward the jury. *Id*. In Mr. Muhammad's matter, he did not interrupt counsel's questions, and it did not take several deputies to restrain him. *Id*. Mr. Muhammad did not interject himself into voir dire and did not disrespect the judge by calling them degrading names. *Id*. Further, Mr. Muhammad did not make aggressive sounding outbursts toward the jury.

In *People v. Johnson*, 432 P.3d 536, 561 (Cal. 2018), the defendant violently attacked his attorney after regular, repeated and vulgar comments about his attorney. The defendant cursed and spit at his attorney. *Id*. The defendant was placed in a holding cell adjacent to the courtroom and continued to disrupt the proceedings by banging or kicking on the cell door. *Id*. In *Commonwealth v. Lane*, No. 2494 EDA 2015, 2016 WL 6997690, at *12 (Pa. Super. Ct. Nov. 30, 2016), "[t]he appellant's behavior from the beginning of the trial to its end was disruptive and obstreperous. His behavior included constant outbursts and an unwillingness to adhere to any courtroom decorum. The appellant was repeatedly warned about his behavior, removed from the courtroom, and permitted to return to the courtroom. All of this was done in an effort to provide him with a fair trial. The appellant, however, had

other ideas, and did everything in his power to sabotage the completion of the trial. The appellant was not a novice to the courtroom, and his interference with the trial was intentional." Mr. Muhammad did not make vulgar comments toward his counsel and certainly did not spit at them. Moreover, Mr. Muhammad did not attempt to disrupt the trial from the beginning. There was not an issue with his courtroom decorum nor him making outbursts in front of the jury.

In *State v. Anthony*, 860 N.W.2d 10, 29 (Wis. 2015), the defendant wanted to testify that he was previously wrongly convicted of armed robbery in Milwaukee. *Id*. at 16. The defendant reasoned he had the right to testify about the alleged wrongful conviction because he had an all-white jury. *Id*. While it is true that the defendant wished to violate an evidentiary ruling, it is distinguishable as Mr. Muhammad wished to testify that the victim possessed a firearm that led to him acting in self-defense. This would be relevant to who the initial aggressor may be and Mr. Muhammad's response. The defendant's testimony in *Anthony* was to play on the juror's emotions about previously being wrongfully convicted, which had no relevance at the defendant's present trial. Thus, *Anthony* is distinguishable.

In *State v. Ericson*, 13 A.3d 777, 782 (Me. 2011), the defendant wished to testify to hearsay from DHHS records and letters from the victim's father that were not admitted into evidence. *Id*. at n.3. The court found the defendant waived his right to testify. The decision in *Ericson* is distinguishable as the remedies differ. It is

unclear what remedy the State had in *Ericson*, if any. Whereas in Mr. Muhammad's matter and as the State requested, the court should have ruled that he opened the door and the State could call FBI agents and other witnesses to testify as to their knowledge of the firearms.

In *Douglas v. State*, 214 P.3d 312, 323 (Alaska 2009), the defendant was excluded from the courtroom on several occasions. The defendant called the prosecutor and the court "f***** morons." *Id*. He wished to relitigate facts of a prior case. *Id*. The defendant was disruptive and disrespectful during the final status and pretrial evidentiary hearing. *Id*. at 324. The defendant used names such as "vile pig-face man" and "fat a**." *Id*. The defendant had angry and uncontrolled outbursts. Mr. Muhammad did not engage in name calling that has no place in a courtroom.

In *State v. Mosley*, 200 S.W.3d 624, 626 (Tenn. Crim. App. 2005), the defendant caused disruptions "throughout voir dire of the jury." The defendant pointed at the judge. *Id*. The defendant spoke so loudly to his attorney in front of the jury that he was admonished. *Id*. When the defendant took the stand, the court allowed the defendant to present his theory of the case that a general sessions judge, the office of the district attorney general, a detective, the trial judge, the victim, and even his own defense lawyers were involved in a conspiracy to hide the fact that the defendant had previously been tried and acquitted of the charges he faced at this trial." *Id*. at 630. The court found the defendant's testimony about documents being

fabricated in his co-defendant's trial was irrelevant and hearsay. *Id*. The defendant offered non-responsive answers. *Id*. at 632. The defendant did not answer questions on cross-examination and contented it was a "fake trial." *Id*. The facts in *Mosley* are distinguishable as the defendant began disrupting the court in voir dire. Mr. Muhammad did not engage in this behavior. Moreover, Mr. Muhammad's defense was not that the people in the courtroom are conspiring against him and attempting to admit evidence from a co-defendant's trial. Mr. Muhammad wished to establish the victim had a firearm which was relevant to his self-defense claim. As stated above, the State had a remedy and requested it – to call witnesses to rebut Mr. Muhammad's claims about the firearm.

In *State v. Chapple*, 36 P.3d 1025, 1026 (Wash. 2001), the defendant was removed from the courtroom during a pretrial hearing for interrupting the proceeding, swearing and the judge, and threatening to kill someone. At trial, the defendant spoke out several times. *Id*. The defendant also used offensive language when raising objections. *Id*. The defendant called the jurors peckerwoods while they were present in the courtroom. *Id*. Moreover, the following occurred:

> THE DEFENDANT: Sure be glad when you get this Klu (sic) Klux Klan meeting over with; I'm getting tired.
> THE COURT: Take the jury out.
> THE DEFENDANT: For what?
> (In the absence of the jury.)
> THE DEFENDANT: Shit; for what? Let the motherfuckers stay anyway.
> THE COURT: Mr. Chapple, we're not going to have the trial—

THE DEFENDANT: Fuck the jury; fuck the trial; fuck all you motherfuckers. I don't give a fuck about you or this trial or this jury.
THE COURT: If you don't want to participate in the trial, we'll go on without you; that's the only choice you have.
....
THE COURT: You have been here and you have been participating fine up to this point and I hope you would continue to do that and we can get through the trial but if you make statements in front of the jury like that—
THE DEFENDANT: Am I a liar or something?
THE COURT: Will you not do that again?
THE DEFENDANT: Am I lying? Did I lie or something?
THE COURT: I am not saying anything about that but disruption in front of the jury cannot take place. Can we try again?
THE DEFENDANT: Continue.

The jury returned. Soon after, during examination of a witness, the defendant interjected:

THE DEFENDANT: He didn't testify for me in the trial, did you, and I got a hung jury so why would I have asked you to do anything for me. You didn't testify in the last trial, did you; shit. I let them know. Take me back to Clallum [sic] Bay if you want to. I wouldn't give a fuck.
THE COURT: Let's take a recess.
THE DEFENDANT: Let's take a recess on me. He didn't testify on the last trial when I got a hung jury 8 to 4 in my favor, so why would it make a difference for you to testify against me, motherfucking—

(The jury left the courtroom.)

THE COURT: We'll take him downstairs.
THE DEFENDANT: I'm the motherfucking man. I have 125 years; I don't give a fuck. Nothing you can do to me. I own the system.

(The defendant left the courtroom.)
Id. at 1027

The court found that the defendant's behavior was sufficient to remove him from the courtroom. *Id*. The facts differ from Mr. Muhammad's matter as he was

never interrupted a pretrial hearing, threatened the judge, nor threatened to kill anyone. Mr. Muhammad did not insult the jury. He did not use profanity. The court found that the defendant was dangerous in *Chapple*, a distinct fact that was not present in Mr. Muhammad's matter. *See id.* at 1026, 1028.

In *State v. Irvin*, 628 S.W.2d 957, 960 (Mo. Ct. App. 1982), the defendant vociferously argued with the court that he did not want to be represented by his appointed attorney. *Id*. at 958. After a panel of jurors was brought into the courtroom, the defendant made two outbursts. *Id*. One of the defendant's outbursts was so severe that the trial court dismissed the panel. *Id*. The next day after a new panel was brought in, the defendant disrupted the proceeding and attacked his attorney. *Id*. Counsel contested that if the defendant were to testify, that he would commit perjury. *Id*. at 959. The court concluded that the remedy of not permitting the defendant to testify was reasonable given his behavior. *Id*. at 960. Mr. Muhammad's matter differs as he never attacked his attorney. *Id*. His proclamations of why he wished to testify about the firearms occurred outside the presence of the jury. *Id*. Neither Mr. Muhammad nor counsel contended that Mr. Muhammad was committing perjury. Thus, *Irvin* is distinguishable.

In *United States v. Gillenwater*, 717 F.3d 1070, 1077 (9th Cir. 2013), the issue was whether the defendant can testify at a competency hearing, not trial. The Ninth Circuit found that the defendant's outburst in the competency hearing was not a

waiver of his right to testify. *Id*. at 1083. In *United States v. Hellems*, 866 F.3d 856, 864–65 (8th Cir. 2017), the defendant repeatedly interrupted and objected to every statement made by the court. This occurred in front of the jury. *Id*. The defendant was removed from the courtroom and waived his right to be present throughout the rest of trial. *Id*. The case did not deal with the right to testify.

CONCLUSION

The State did not preserve error that Mr. Muhammad forfeited his right to testify. Even if the State did preserve error, each of the State's cited cases to support Mr. Muhammad forfeited his right to testify is distinguishable. The Court should reverse and remand for a new trial to give Mr. Muhammad the ability to testify in his own defense.

ORAL ARGUMENT NOTICE

Counsel respectfully requests oral argument.

CERTIFICATE OF COMPLIANCE AND SERVICE

This brief complies with the typeface requirements of Iowa R. App. P. 6.903(1)(g) and the type-style requirements of Iowa R. App. P. 6.903(1)(h) because this brief has been prepared in a proportionally spaced serif typeface, Times New Roman, in 14-point font size.

This brief complies with the type-volume limitation of Iowa R. App. P. 6.903(1)(i)(1) because it contains fewer than 6,500 words, excluding the parts of the brief that are exempt from the limitation, such as the captions, tables of contents or authorities, statement of the issues, signature blocks, and certificates.

I hereby certify that on May 4, 2026, I served the foregoing Applicant-Appellant's Brief by mailing one copy to the following:

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